

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUWM068928: DOUGLAS PARTELLO vs LOURDES LOPEZ, et al.
08/25/2026 in Department 44
Court Trial

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The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Petition for Peremptory Writ of Mandate

Tentative Ruling:

The Petition for Peremptory Writ of Mandate is **GRANTED** in part and **DENIED** in part as follows:

1. Respondent and Real Parties in Interest’s evidentiary objection to Exhibit 1 to the Declaration of Douglas Partello is SUSTAINED on relevance grounds. The Court does not reach the remaining stated grounds.
2. The petition is GRANTED as to the existing ballot title. Respondents shall not print the title: “CITY OF OXNARD PUBLIC SAFETY, FINANCIAL STABILITY MEASURE (NO TAX RATE INCREASE).”

The ballot title shall instead read:

“CITY OF OXNARD EXTENSION OF MEASURE O SALES TAX.”

3. The petition is GRANTED as to the ballot question, which shall read as follows:

“Shall the measure renewing an existing ½ % sales tax used for maintaining City of Oxnard’s general governmental services like public safety, 911 emergency response/fire protection, streets/potholes repairs, homelessness services, senior programs, anti-gang/after-school programs, and other general services, providing \$20,000,000 annually until ended by voters, requiring oversight, audits, public spending disclosure, all funds for Oxnard, be adopted?”

4. The petition is otherwise DENIED as to Petitioner’s separate challenges to the words “renewing” and “requiring oversight, audits, public spending disclosure.”

5. The petition is GRANTED IN PART as to the City Attorney’s impartial analysis. The phrase identifying Measure E as the “City of Oxnard Public Safety, Financial Stability Measure (No Tax Rate Increase)” shall be deleted from the paragraph describing Measure E. That paragraph shall begin:

“Measure E proposes to repeal the sunset or termination provision of Measure O so that Measure O’s ½ cent sales tax will not terminate but will continue until ended by voters.”

The petition is otherwise DENIED as to the impartial analysis, including the challenge to the statement that Measure E “would not increase existing sales tax rates within Oxnard.”

6. Respondents are directed to implement these amendments forthwith so that the corrected election materials may be timely transmitted for printing before the Registrar’s August 28, 2026 deadline.

7. Petitioner’s request for attorney’s fees under Code of Civil Procedure section 1021.5 is not determined by this order and may be presented by timely noticed motion, if appropriate.

Petitioner to give notice.

I. Background

A. Factual Background

In 2008, Oxnard voters approved Measure O, Ordinance No. 2779, imposing a one-half-cent general transactions and use tax. Measure O provides that the tax expires after 20 years, on March 31, 2029, unless extended by the voters. Measure O also contains fiscal-accountability provisions requiring an independent annual financial audit, annual public reporting, and citizen oversight. (Pet., ¶ 14 & Ex. 2.) Measure O’s operative “PURPOSE” provision states, in pertinent part, that the ordinance was adopted “[t]o protect, maintain, and enhance vital city services by imposing a general purpose retail transactions and use tax of one-half cent.” The more detailed list of police, fire, street, youth, senior, and other services appears in Measure O’s recitals rather

than its operative purpose provision. Measure O separately establishes fiscal-accountability requirements, including independent audits and citizen oversight.

On June 16, 2026, the Oxnard City Council adopted Resolution No. 16,071 placing what is now designated Measure E on the November 3, 2026 ballot. (Pet., ¶¶ 14-15 & Ex. 1.) Measure E's operative purpose is considerably narrower than its recitals. Section 2 states that the ordinance is adopted to amend Measure O "to remove its sunset provisions so that Measure O's existing, voter-approved ½¢ sales tax continues until ended by voters." Section 3 repeals Measure O's "TWENTY-YEAR SUNSET" provision and expressly leaves all other provisions of Measure O in full force and effect.

The City adopted the following ballot title and question:

CITY OF OXNARD PUBLIC SAFETY, FINANCIAL STABILITY MEASURE (NO TAX RATE INCREASE).

"Shall the measure maintaining City of Oxnard's services without raising current tax rates, including protecting public safety, maintaining 911 emergency response/fire protection; repairing streets/potholes; addressing homelessness; maintaining programs for vulnerable seniors; anti-gang/after-school programs; other general services, by renewing an existing ½ ¢ sales tax, providing \$20,000,000 annually until ended by voters, requiring oversight, audits, public spending disclosure, all funds for Oxnard, be adopted?" (Pet., ¶ 15 & Ex. 1, § 4.)

Petitioner Douglas Partello ("Petitioner") is an Oxnard voter and elector. (Pet., ¶ 2.) He alleges the ballot title violates Election Code section 13119 because the phrases "PUBLIC SAFETY," "FINANCIAL STABILITY," and "(NO TAX RATE INCREASE)" are not true and impartial, but instead are argumentative, prejudicial, and/or misleading. (Pet., ¶ 26.) He proposes the title "CITY OF OXNARD EXTENSION OF MEASURE O SALES TAX." (Pet., ¶ 27.)

Petitioner's second cause of action challenges several portions of the ballot question. (Pet., ¶¶ 30-43.) He contends that the service list and the verbs "maintaining," "protecting," "repairing," and "addressing," together with "vulnerable seniors," give voters affirmative reasons to support Measure E rather than neutrally describe the measure. (Pet., ¶¶ 33-36.) He separately contends that "without raising current tax rates" is misleading because, without Measure E, Measure O will expire March 31, 2029; that "renewing" is misleading because Measure E removes the sunset indefinitely rather than establishing another fixed term; and that "requiring oversight, audits, public spending disclosure" is inaccurate because Measure E does not itself create those requirements. (Pet., ¶¶ 37-40.)

Petitioner also alleges the detailed service list does not appear in the operative provisions of Measure E and should instead be replaced with language based on Measure E's own Section 2 statement of purpose. (Pet., ¶¶ 41-43.) His proposed alternative asks whether Measure O should be amended "to remove its sunset provisions so that Measure O's existing, voter-approved ½ ¢ sales tax continues until ended by voters." (Pet., ¶ 43.)

Finally, the third cause of action challenges the City Attorney's impartial analysis under Election Code sections 9280 and 9295. (Pet., ¶¶ 44-50.) Petitioner challenges two aspects of the analysis: (1) its repetition of the title "City of Oxnard Public Safety, Financial Stability Measure (No Tax Rate Increase)," and (2) its statement that Measure E "would not increase existing sales tax rates within Oxnard." (Pet., ¶¶ 47-49.)

The analysis itself, however, provides considerably more context than the ballot label. It expressly states that Measure O will terminate March 31, 2029; that Measure E proposes to repeal that termination provision so that the existing one-half-cent tax "will not terminate but will continue until ended by voters;" and that all other Measure O provisions, including oversight, independent audits, and public-spending disclosure, will remain in force.

B. Procedural Background

Petitioner filed the verified petition on June 26, 2026.

The parties July 6, 2026 Joint Report stated that Registrar Michelle Ascencion would remain neutral and needed any changes to the ballot language by Friday, August 28, 2026. It further reflected that Ascencion was personally served on June 30, 2026 and that counsel for the City parties agreed to accept electronic service effective that date.

At the July 7, 2026 case management conference, the Court set an expedited briefing schedule and the August 25, 2026 writ trial. Counsel for the Registrar represented that August 28, 2026 was the deadline for preparation of the ballots for mailing. The Court ordered Petitioner's opening brief filed by July 24, the opposition by August 6, and the reply by August 13.

Petitioner separately sought expedited discovery concerning survey materials commissioned by the City. On July 13, 2026, the Court denied that request. The Court assumed without deciding that the Civil Discovery Act applied, but concluded under *McDonough v. Superior Court* (2012) 204 Cal.App.4th 1169 and *Martinez v. Superior Court* (2006) 142 Cal.App.4th 1245 that the pertinent inquiry was the objective effect of the ballot language, rather than the City's drafting process or subjective intent. The Court therefore found discovery into the drafting process and intent irrelevant.

Petitioner sought writ relief from that ruling in the Court of Appeal. On July 17, 2026, the Second District, Division Six denied the writ petition and request for an immediate stay.

Petitioner timely filed his opening brief and supporting declaration on July 24, 2026. Respondent Ascencion filed an Answer and Statement of Neutrality on July 30, 2026. She takes no position on the merits and requests a ruling at the August 25 hearing so that election materials can timely be submitted to the printer.

Respondent Lourdes Lopez and Real Parties in Interest Stephen Fischer and the City of Oxnard ("City Parties") filed their opposition and evidentiary objections on August 6, 2026. They did not file a separate answer to the petition. Petitioner filed his reply on August 13, 2026.

II. Preliminary Matters

A. Service, Notice, and Absence of Separate City Answer

Service and notice are sufficient. Ascencion was personally served June 30, 2026, and City counsel agreed to accept electronic service as of that date. All parties have appeared and participated in the expedited proceedings.

Ascencion filed the only formal answer. Lopez, Fischer, and the City did not file a separate verified answer or formal return to the Petition. Code of Civil Procedure section 1089.5, however, requires a respondent to “answer or otherwise respond” to a trial-court mandate petition; a formal answer is not the exclusive permissible response. Moreover, a writ of mandate may not be granted by default, and the absence of a formal return does not prevent the Court from adjudicating the petition. (Code Civ. Proc., §§ 1088, 1094; *Lewis v. Superior Court* (1999) 19 Cal.4th 1232, 1246, fn. 7, 1251.)

Here, the City Parties appeared and participated in the proceedings and filed a full merits opposition on August 6, 2026, in accordance with the briefing schedule expressly ordered by the Court on July 7, 2026. The absence of a separate verified answer therefore does not preclude adjudication of the Petition on the merits. To the extent the City Parties seek to controvert factual allegations of the verified Petition, however, their unverified opposition does not serve the same function as a verified return. (See *Central Bank v. Superior Court* (1978) 81 Cal.App.3d 592, 600.)

B. Evidentiary Objections

The City Parties assert one evidentiary objection to Exhibit 1 to Douglas Partello’s declaration, a partial transcript of the June 16, 2026 City Council meeting. They object based on hearsay, relevance, Evidence Code § 352, and incompleteness under Evidence Code § 356. Their principal contention is that the Council’s subjective drafting process is irrelevant to the objective inquiry governing the ballot language.

The objection is SUSTAINED on relevance grounds. The Court already determined on July 13 that evidence concerning the City’s drafting process or subjective intent is not relevant to whether the ballot language, viewed objectively, is partial, false, or misleading. It is unnecessary to reach the remaining objections.

For the same reason, the Court need not rely on the City’s survey materials to determine the merits. The question under Elections Code section 13119 is whether the language ultimately adopted is objectively argumentative or likely to create prejudice—not why the Council chose it. *Martinez* likewise holds that it is “the ballot title’s language which must be impartial, not the claimed motives of the council.” (*Martinez v. Superior Court* (2006) 142 Cal.App.4th 1245, 1248.)

III. Discussion

A. Legal Standard

Elections Code section 13119(c) requires the statement of a local measure to be “a true and impartial synopsis of the purpose of the proposed measure” and to use language “neither argumentative nor likely to create prejudice for or against the measure.”

Elections Code section 13119(b) requires specified tax measures to disclose the amount to be raised annually and the tax’s rate and duration.

Elections Code section 13314 permits an elector to seek mandate to correct an error or omission in the printing of a ballot or other official election matter. A peremptory writ may issue only upon proof that the error, omission, or neglect violates the Elections Code, or Constitution and that issuance will not substantially interfere with the conduct of the election. (Elec. Code, § 13314(a)(2).)

The Court independently examines whether the ballot language substantially complies with the governing neutrality requirement, while recognizing that ballot drafters have considerable latitude. Only a clear case warrants judicial alteration, and if reasonable minds may differ as to the sufficiency of language, it ordinarily should stand. (*McDonough, supra*, at pp. 1174-1175; *Martinez, supra*, at p. 1248.) “Partial” language is language that signals the government’s view of how voters should vote or casts one side in a favorable light while disparaging the opposing view. (*Martinez, supra*, at p. 1248.)

Constitutional neutrality requires that ballot wording not favor a partisan position. (*McDonough, supra*, at p. 1174; *Huntington Beach City Council v. Superior Court* (2002) 94 Cal.App.4th 1417, 1433-1434.) *Huntington Beach* recognizes that context can make a statement materially misleading even when the statement is literally true in one sense. (*Huntington Beach, supra*, at p. 1432.)

B. Burden of Proof

For municipal election materials covered by Elections Code section 9295, a writ requiring amendment or deletion may issue “only upon clear and convincing proof” that the material is false, misleading, or inconsistent with the applicable statutory requirements and that relief will not substantially interfere with printing or distribution of official election materials. (Elec. Code, § 9295(b)(2).)

Petitioner contends this heightened burden applies only to the City Attorney’s impartial analysis and that the ordinary preponderance standard governs his Elections Code section 13314 challenge to the ballot label. The City Parties contend the clear-and-convincing standard applies to both.

The City’s position is better supported by the published authority. In *McDonough*, voters challenged a municipal ballot title and ballot question under Elections Code sections 9295 and

13314. The Court of Appeal expressly applied section 9295’s requirement of clear and convincing proof to the challenge. (*McDonough v. Superior Court* (2012) 204 Cal.App.4th 1169, 1172-1174.) *Martinez* similarly held that a municipal ballot title “must not be false, misleading, or partial to one side” under Elections Code section 9295. (*Martinez, supra*, at p. 1248.) Whatever force Petitioner’s textual distinction between sections 9295 and 13314 might otherwise have, the Court should follow these directly applicable authorities and use the clear-and-convincing standard.

C. The Petition is Granted in Part Because the Ballot Title and Service-Oriented Portion of the Ballot Question are Impermissibly Argumentative and Partial, the City Attorney’s Impartial Analysis Includes Repetition of the Defective Title, and the Requested Relief Can Be Implemented Without Substantially Interfering With the Election

1. Ballot Title

The existing title is:

CITY OF OXNARD PUBLIC SAFETY, FINANCIAL STABILITY MEASURE (NO TAX RATE INCREASE).

The title does substantially more than identify the subject of Measure E. “Public Safety” and “Financial Stability” describe desirable consequences the City believes continuation of the tax will advance. Measure E’s operative purpose provision, however, states simply that the ordinance removes Measure O’s sunset so that the existing one-half-cent sales tax continues until voters end it.

McDonough is instructive. There, the Court of Appeal held that the title “PENSION REFORM” improperly took a position because “reform” characterized the existing system as defective and therefore conveyed a favorable characterization of the measure. It ordered the neutral title “PENSION MODIFICATION.” (*McDonough, supra*, at pp. 1174-1175.) Similarly, *Huntington Beach* ordered “exemption” removed from a ballot title because its favorable or unfavorable connotations amounted to “advocacy by other means.” (*Huntington Beach, supra*, at pp. 1433-1434.)

Here, characterizing the proposed extension itself as a “PUBLIC SAFETY, FINANCIAL STABILITY MEASURE” affirmatively associates a “yes” vote with two plainly desirable objectives rather than neutrally identifying the legal change before the electorate. That defect is especially apparent because the City’s own Section 2 provides a ready neutral description of the measure—removal of Measure O’s sunset.

The Court also determines that “NO TAX RATE INCREASE,” is misleading in that passage of the measure operates to prevent a decrease; if Measure E is not passed, the sunset provision of Measure O will become operative and result in a tax decrease. If Measure E is passed, the taxes will continue to be imposed, which has the effect of a tax increase even though Oxnard consumers will not recognize a difference in prices paid before and after 2029. Measure E does

not increase the one-half-cent rate presently in effect. Additionally, the title must be assessed as a whole. Its combination of “Public Safety,” “Financial Stability,” and “No Tax Rate Increase” presents the measure principally through its claimed benefits rather than its operative legal change. Under *McDonough*, this is sufficiently clear advocacy to warrant correction.

Petitioner’s proposed replacement is neutral and accurately identifies the measure:

CITY OF OXNARD EXTENSION OF MEASURE O SALES TAX. (Pet., ¶ 27.)

The petition is therefore GRANTED as to the ballot title.

2. Ballot Question

a. Service-Oriented Introductory Language

The portion stating that Measure E will maintain City services “including protecting public safety, maintaining 911 emergency response/fire protection; repairing streets/potholes; addressing homelessness; maintaining programs for vulnerable seniors; anti-gang/after-school programs; other general services” is materially analogous to the language struck in *McDonough* on the ground that the language was partisan and prejudicial. (*McDonough, supra*, 204 Cal.App.4th at p. 1176.)

There, the ballot question opened: “To protect essential services, including neighborhood police patrols, fire stations, libraries, community centers, streets and parks,” followed by the proposed pension changes. (*McDonough, supra*, at p. 1175.) Although the city argued preservation of those services was genuinely a purpose of the measure and supported by reports connecting pension costs to service reductions, the Court of Appeal held those considerations “properly belong in the ballot arguments in favor of the measure, not in the ballot question.” (*Id.* at pp. 1175-1176.) The language improperly promoted the measure by implying that voters needed to approve it to preserve popular public services. The court ordered the entire service-oriented introductory phrase deleted. (*Id.* at p. 1176.)

The same reasoning applies here. The City’s opposition overstates the textual basis for the detailed list when it repeatedly characterizes the listed services as appearing in Measure O’s “purpose provision.” Measure O’s operative Part 3 purpose provision refers generally to protecting, maintaining, and enhancing “vital city services.” The detailed list appears in the ordinance’s recitals. Measure E, in turn, states its operative purpose as removing the sunset so the existing tax continues.

It is true that Measure O revenues are general revenues and have been used for the listed services, and Measure E preserves Measure O’s operative provisions. But *McDonough* rejected materially the same attempt to use the expected preservation of popular services as the introductory description of a ballot measure. Petitioners here, however, do not object to an exemplar list of governmental services (see, e.g., Pet. ¶ 39) so much as to the adjectives and verbs used in connection with the list of services that imply a continuation of those same services (e.g., “maintaining” 911 emergency response, “addressing” homelessness), and that place a

moral imperative concerning the value of those services (“maintaining programs for vulnerable” seniors). The Court finds that the language as proposed is partial; it amounts to advocacy that gives voters reasons to favor the measure rather than neutrally stating what the measure does.

The Petition as to this clause is therefore GRANTED.

b. “Without Raising Current Tax Rates”

Similar to the parenthetical phrase contained in the ballot title, the phrase “without raising current tax rates” that appears within the introductory clause is misleading at best for the reasons explained above.

The Petition as to this phrase is therefore GRANTED, and the service-oriented introductory clause is deleted. It shall be deleted together with that clause.

c. “Renewing”

Petitioner argues “renewing” falsely suggests another fixed term rather than indefinite continuation. (Pet., ¶ 38.) But the ballot question does not use “renewing” in isolation. It immediately states that the existing tax will continue “until ended by voters.” In context, a reasonable voter would understand that the measure extends or continues the existing tax without a new fixed expiration date.

At most, “extending” may be stylistically more precise. Under *Martinez*, however, the question is not whether the Court can devise a more accurate or comprehensive description, but whether the City’s wording is false, misleading, or partial. (*Martinez, supra*, at 1248.)

The clear-and-convincing standard is not met as to “renewing.” The Petition as to this term is therefore DENIED.

d. “Requiring Oversight, Audits, Public Spending Disclosure”

Petitioner correctly observes that Measure E does not newly create these requirements. But Section 3 of Measure E expressly provides that, except for repeal of the sunset, “all remaining provisions of Ordinance No. 2779 shall remain in full force and effect until ended by the voters.”

Measure O in fact contains operative fiscal-accountability provisions requiring independent annual financial audits, annual public reporting, and citizen oversight. Thus, a vote for Measure E continues a tax that remains subject to those requirements. Although “continuing existing oversight, audits, and public spending disclosure” would be more exact, the existing formulation has not been shown by clear and convincing evidence to be false, misleading, or partial.

The Petition as to this phrase is therefore DENIED.

e. Appropriate Corrected Question

Following *McDonough*, the narrowest remedy is to delete the argumentative introductory clause, identify what the measure does placing language already in the ballot question at the beginning of the question, and delete offending phrases rather than to judicially redraft portions that independently satisfy the statutory standard.

The resulting question shall read:

“Shall the measure renewing an existing ½ □ sales tax used for maintaining City of Oxnard’s general governmental services like public safety, 911 emergency response/fire protection, streets/potholes repairs, homelessness services, senior programs, anti-gang/after-school programs, and other general services, providing \$20,000,000 annually until ended by voters, requiring oversight, audits, public spending disclosure, all funds for Oxnard, be adopted?”¹

This leaves intact the rate, annual amount, indefinite duration, accountability provisions, and local use of funds while removing the service-oriented advocacy.

3. City Attorney’s Impartial Analysis

Elections Code section 9280 requires the city attorney to prepare an impartial analysis showing the effect of the measure on existing law and the operation of the measure. A challenge under Elections Code section 9295 requires clear and convincing proof that the material is false, misleading, or inconsistent with the statutory requirements.

Unlike the abbreviated ballot label, the City Attorney’s analysis expressly identifies the critical existing-law baseline. It states that Measure O sunsets on March 31, 2029, and then immediately explains that Measure E repeals that sunset so the one-half-cent tax “will not terminate but will continue until ended by voters.” Only after providing that explanation does it state that Measure E would keep the existing tax in place “but would not increase existing sales tax[] rates within Oxnard.”

¹ The changes are reflected as follows:

Shall the measure renewing an existing ½ □ sales tax used for maintaining City of Oxnard’s general governmental services without raising current tax rates, including protecting like public safety, maintaining 911 emergency response/fire protection, repairing streets/potholes repairs, addressing homelessness services, maintaining senior programs for vulnerable seniors, anti-gang/after-school programs, and other general services, by renewing an existing 1/2 □ sales tax, providing \$20,000,000 annually until ended by voters, requiring oversight, audits, public spending disclosure, all funds for Oxnard, be adopted?

In that context, the “would not increase existing sales tax rates” statement is materially accurate. The analysis does not suggest the tax presently has no expiration date; to the contrary, it expressly discloses the March 31, 2029 sunset and explains that Measure E removes it. Petitioner’s challenge to this portion therefore does not satisfy the clear-and-convincing standard.

There is a problem with the analysis’s republication of the ballot title. The analysis presently states:

“Measure ____ -- which is entitled the ‘City of Oxnard Public Safety, Financial Stability Measure (No Tax Rate Increase)’ -- proposes to repeal the sunset or termination provision . . .”

The Court finds above that the ballot title is impermissibly partial and argumentative. Including the same phrase in the statutorily required “impartial analysis” unnecessarily republishes the same partial wording. Although the quoted title is technically the title adopted in Measure E’s Section 1, the analysis can accurately explain the measure without it.

The analysis should therefore be amended simply to begin the pertinent paragraph:

“Measure E proposes to repeal the sunset or termination provision of Measure O so that Measure O’s ½ cent sales tax will not terminate but will continue until ended by voters.”

The remainder of the impartial analysis should remain unchanged.

The Petition is therefore GRANTED in part, only as to republication of the challenged ballot title; otherwise it is DENIED.

4. Substantial Interference With Election

The second statutory prerequisite to writ relief is satisfied. The Registrar advised the parties that any language changes must be received by August 28, 2026, and her counsel repeated at the July 7 conference that August 28 is the County’s ballot-preparation deadline. The City does not contend in its merits opposition that an order issued at the August 25 hearing would substantially interfere with the election, and Petitioner’s reply identifies the timing element as uncontested.

Accordingly, the Court can afford effective relief without substantially interfering with the printing or distribution of election materials.